

I. Request

1. The President of the Committee on Economy, Public Works, Planning, and Housing of the Assembly of the Republic requested the National Data Protection Commission (CNPd) to issue an opinion on Draft Law No. 799/XV/1st (CHEGA), which "Creates the Municipal Tenants Registration Platform" (hereinafter referred to as the Project).

2. The CNPD issues an opinion within the scope of its powers and competencies, as an independent administrative authority with the authority to oversee the processing of personal data, granted by paragraph c) of number 1 of article 57, paragraph b) of number 3 of article 58, and number 4 of article 36, all of Regulation (EU) 2016/679, of April 27, 2016 – General Data Protection Regulation (hereinafter GDPR), in conjunction with the provisions of article 3, number 2 of article 4, and paragraph a) of number 1 of article 6, all of Law No. 58/2019, of August 8, which implements the GDPR in the internal legal order.

II. Analysis

3. The present Project begins by stating that "The regime for the allocation and social and property management of the housing stock owned by municipalities intended for supported rental, as well as the regime for the allocation of financial support for youth housing, as a measure to support access to housing, must be fully transparent and equitable." (§ 2)

4. It adds that "Tight regulation and oversight will prevent subletting; ensure that housing is allocated to those who truly need it, as well as combat the exploitation of others' vulnerabilities that underlie these practices." (§ 8)

5. It further argues that "Through the Municipal Tenants Registration Platform (PRAM), it will be possible to identify the tenant and their respective household, thus making it impossible for this same household to benefit from another public housing in another municipality or to continue to enjoy the housing initially allocated despite owning their own property. The mere existence of the platform is not sufficient to combat fraud; however, if complemented by effective oversight by the Municipal Chambers, it can have a significant impact." (§ 10)

6. Concluding as follows: "That is, the holders of the lease and their respective household must maintain their permanent residence in the housing allocated to them, leading their normal life there and where their domestic life and economy are organized and centralized in a stable and lasting manner, and any form of transfer, total or partial, temporary or permanent, onerous or free, of the enjoyment of the housing by the tenant or any member of the household, namely the transfer of the contractual position, subletting, hosting, or loan for use, commonly known as 'key selling' or 'hot bedding,' must be prevented."

7. The legal design of this legislative initiative is sequenced only by articles, comprising seven (7): 1st object; 2nd Municipal Tenants Platform (PRAM); 3rd Registration of beneficiaries of public housing; 3rd Changes to the PRAM registration; 4th Protection of personal data; 5th Sanctions; 6th Regulation; 7th Entry into force.

8. The object of this Project is marked in article 1, maintaining the purpose stated in the Explanatory Memorandum that "This diploma determines the creation of the Municipal Tenants Registration Platform (PRAM)."

9. Article 2 of the Project establishes that the platform "has a national character and is a platform that centralizes all information related to available public housing, as well as its beneficiaries, being shared by all municipalities in mainland Portugal and Autonomous Regions" (number 1), stating that "The data related to housing to be included in the PRAM is the responsibility of the respective Municipal Chamber" (number 2) and finally "The PRAM must allow the consultation of property registration data, in order to ascertain whether the tenant beneficiaries of municipal housing own their own and permanent housing." (number 3).

10. The CNPD notes that the Project does not reveal who will be responsible for the overall processing of personal data of the future platform (article 24 of the GDPR), nor does it indicate whether a situation

of joint liability by the municipalities may occur (article 26 of the GDPR).

11. It is also worth mentioning that if the PRAM is installed in a central entity and assuming it is an authority or public body, we are faced with a situation of mandatory appointment of a data protection officer (DPO) (article 37, number 1, paragraph a) of the GDPR and 12th LERGPD).

12. However, since the central entity for the processing of personal data is not defined, we remain unaware of who will proceed with the appointment of the DPO.

13. In turn, article 3 of the Project lists the data that must be included in the future PRAM, which concerns "all data related to housing, the tenant, and their respective household" (number 1), to "contain at least: the name, tax identification number, and social security identification number of all household members who will cohabit with the tenant" (number 2).

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14. Thus, regarding the scope of personal data, the text of paragraph 2 of article 3 of the Project expressly and literally states that it will "contain at least: ...", indicating that more personal data than those legally provided may be processed.

15. The exemplary nature of the personal data to be included in the PRAM leaves a significant gap for the legality of data processing (article 5, paragraph 1 of the GDPR), and the enabling law should immediately clarify its scope, rather than leaving it to the regulatory diploma.

16. The present Project highlights in its article 4 the protection of personal data, in order to ensure technical and organizational security measures, with a specific reference to the GDPR, more precisely to articles 25 (Data protection by design and by default) and 32 (Security of processing).

17. However, allowing the PRAM to involve 308 municipalities in entering and altering personal data, presumably on a large scale, which are likely to create profiles of the economic situation of individuals who will be part of this platform, it is advised that a prior assessment of the impact on the protection of personal data be conducted.

18. Lastly, and as a mere note, the CNPD observes that the object of the Project, which consists of the creation of a Municipal Tenants Registration Platform, is distorted by its article 3, which describes changes in the legal situation regarding "municipal leasing" (paragraph 1) and the lack of communication regarding changes in the family unit (paragraph 2), subsequently establishing the consequences provided for in article 5, leading to the "loss of the right to housing."

III. CONCLUSIONS

19. In accordance with the terms and grounds set forth above, the CNPD issues this opinion, recommending:

- a) The legal identification of the main responsible party for the processing of data of the Municipal Tenants Registration Platform (PRAM);
- b) The exhaustive specification of the personal data that will be registered in the Municipal Tenants Registration Platform;
- c) The legal provision for a data protection officer;
- d) The prior conduct of an impact assessment on the protection of data circulating in the PRAM.

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Approved at the meeting of July 4, 2023

Paula Meira Lourenço (President)